

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ERIN PACE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RICHARD HORNBERGER, Shield No. 14817, POLICE
OFFICER EVELYN HALL, Shield No. 5189,
SERGEANT JOSELUIS DELUNA, Shield No. 3058,
SERGEANT O'CONNOR, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.

SUMMONS

Index No.:

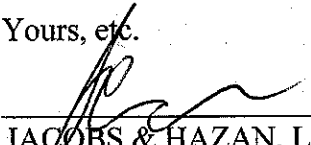
The Basis of Venue is:
Location of IncidentPlaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 1, 2015

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER RICHARD HORNBERGER, Shield No. 14817, Transit Bureau Anti-Terrorism Unit
POLICE OFFICER EVELYN HALL, Shield No. 5189, Transit Bureau Anti-Terrorism Unit
SERGEANT JOSELUIS DELUNA, Shield No. 3058, Transit Bureau Anti-Terrorism Unit
SERGEANT O'CONNOR, Transit District #2

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

----- X

Plaintiff ERIN PACE, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 4, 2014, at approximately 6:00 p.m., plaintiff Erin Pace, while lawfully present inside of the subway station located in the vicinity of 34th Street and 8th Avenue, New York, New York, was subject to an unlawful stop, question, frisk, search, detention, false arrest, false imprisonment, assault, and battery by the defendant New York City police officers. Plaintiff was also denied a right to a fair trial. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, and used excessive force against her in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Erin Pace is a resident of the State of New York.

3. POLICE OFFICER RICHARD HORNBERGER, Shield No. 14817, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER RICHARD HORNBERGER, Shield No. 14817, is and was at all times relevant herein, assigned to the Transit Bureau Anti-Terrorism Unit.

5. POLICE OFFICER RICHARD HORNBERGER, Shield No. 14817, is being sued in his individual and official capacities.

6. POLICE OFFICER EVELYN HALL, Shield No. 5189, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER EVELYN HALL, Shield No. 5189, is and was at all times relevant herein, assigned to the Transit Bureau Anti-Terrorism Unit.

8. POLICE OFFICER EVELYN HALL, Shield No. 5189, is being sued in her individual and official capacities.

9. SERGEANT JOSELUIS DELUNA, Shield No. 3058, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT JOSELUIS DELUNA, Shield No. 3058, is and was at all times relevant herein, assigned to the Transit Bureau Anti-Terrorism Unit.

11. SERGEANT JOSELUIS DELUNA, Shield No. 3058, is being sued in his individual and official capacities.

12. SERGEANT O'CONNOR, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT O'CONNOR, is and was at all times relevant herein, assigned to Transit District #2.

14. SERGEANT O'CONNOR, is being sued in his individual and official capacities.

15. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-4 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in

conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK, in compliance with General Municipal Law Section 50, and has complied with all conditions precedent to file a lawsuit against the City of New York.

20. On or about July 14, 2014, defendant City of New York conducted a hearing pursuant to General Municipal Law Section 50-h.

21. More than thirty (30) days have elapsed since the Notice of Claim was filed with THE CITY OF NEW YORK and the City of New York has failed to pay or adjust the claim.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. By way of background, on February 12, 2014, plaintiff lawfully purchased a 30 day unlimited Metrocard that was valid through March 12, 2014.

25. On March 4, 2014, at approximately 6:00 p.m., plaintiff was lawfully present inside of the subway station in the vicinity of 34th Street and Eighth Avenue, New York, New York.

26. After plaintiff entered the subway system she was unlawfully approached, stopped, questioned, and frisked by the defendant police officers without legal justification, reasonable suspicion, or probable cause.

27. The defendant police officers ordered plaintiff to provide them with her identification, and plaintiff complied with the order, and provided them with her government issued identification.

28. The defendant police officers also ordered plaintiff to provide them with her Metrocard so they could check to see if it had sufficient funds on it.

29. The defendant police officers confirmed that plaintiff's Metrocard was a valid unlimited 30 day Metrocard.

30. At no point in time did plaintiff resist the defendant police officers in any way, or disobey an order given to her by the police officers.

31. At no point in time did plaintiff commit any crime, nor did the police officers have probable cause to believe plaintiff committed a crime.

32. After the defendant police officers confirmed that plaintiff's Metrocard was a valid unlimited Metrocard, plaintiff asked the defendant police officers for their badge numbers.

33. As soon as plaintiff requested the defendant police officers' badge numbers, in retaliation, the defendant police officers handcuffed plaintiff and unlawfully arrested her without legal justification or probable cause.

34. The handcuffs placed on plaintiff were unreasonably tight on plaintiff's wrists, causing plaintiff to suffer pain and discomfort.

35. Plaintiff told the defendant police officers that the handcuffs were hurting her wrists, and asked the defendant police officers to loosen the handcuffs, but the defendant police officers ignored plaintiff and failed to loosen the handcuffs.

36. The unreasonably tight handcuffs were the direct and proximate cause of the serious physical injuries to plaintiff's wrists.

37. Thereafter, plaintiff was transported to the Transit District #2 precinct located inside of the subway station at 14th Street/Union Square.

38. Plaintiff was unlawfully detained for approximately 4 hours inside of the Transit District #2 without any legal basis for the detention.

39. Thereafter, on March 4, 2014, at approximately 11:00 p.m., plaintiff was transported to Manhattan Central Booking.

40. The defendant police officers then falsely stated to the New York County District Attorney's Office that plaintiff had committed a crime.

41. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff on March 5, 2014, and legal process against plaintiff was commenced when plaintiff was arraigned in New York County Criminal Court and was falsely charged with several crimes.

42. Specifically, the defendant police officers failed to tell the District Attorney's Office that plaintiff's Metrocard was a valid unlimited 30 day Metrocard.

43. In fact, in order to cover up their unlawful arrest of plaintiff, the defendant police officers did not voucher plaintiff's Metrocard as arrest evidence.

44. Instead, the defendant police officers gave plaintiff's Metrocard back to her.

45. Plaintiff was required to appear in Court on one occasion to address the false allegations made against plaintiff by the officers, and upon information and belief all were dismissed and sealed on June 4, 2014.

46. The individually named defendant police officers that observed the violations of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unconstitutional stop, search, false arrest, false imprisonment, and use of excessive force against plaintiff by their fellow police officers are liable to plaintiff for damages caused to her by their colleagues because of their failure to intervene.

47. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, and arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

48. As a result of defendant City of New York and the New York City Police Department's policy, practice and custom of permitting police officers to unconstitutionally stop, question, frisk, search, and arrest individuals without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference to the fact that New York City Police Officers routinely engage in this unlawful conduct without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking, searching, and arresting individuals without a factual basis supporting a legal reason to do so.

49. The unlawful stop, question, frisk, search, false arrest, false imprisonment, assault, battery, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, and falsely imprisoned plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the United States Constitution and laws of the State of New York.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the United States Constitution and laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Assault

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

61. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Battery

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner pushed plaintiff down the stairs with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

65. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

66. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligence

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants owed a duty of care to plaintiff.

69. To the extent defendants claim that the injuries to plaintiff's person by the defendant police officers was unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by accidentally and negligently putting the handcuffs on plaintiff's wrists in an unreasonably tight and painful manner, and assaulting and battering plaintiff.

70. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

71. All of the foregoing occurred without any fault or provocation by plaintiff.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Erin Pace. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

75. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The use of excessive force by defendants by, amongst other things, by tightly handcuffing plaintiff constituted objectively unreasonable physical seizures of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

81. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

84. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 88 with the same force and effect as if fully set forth herein.

90. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Manhattan County District Attorney's Office.

91. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Manhattan County District Attorney's Office.

92. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Manhattan County District Attorney's Office.

93. In withholding/creating false evidence against plaintiff Erin Pace, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

94. As a result of the foregoing, plaintiff Erin Pace, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Failure to Intervene

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

99. Defendants failed to intervene to prevent the unlawful conduct described herein.

100. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TWELVTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

105. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable, as well as

inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

106. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

107. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

108. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

109. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

110. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Erin Pace demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 2, 2015

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

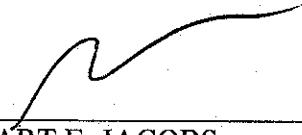
TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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SERGEANT O'CONNOR, Transit District #2

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
June 2, 2015



STUART E. JACOBS